

Vishwanath v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 28 August 2024 · WRIT - C No. 7327 of 2024 · **Suit-quash prayer deleted; four weeks for counter-affidavit and two weeks for rejoinder; listed on 15.10.2024.**

HEADNOTE

On the petitioner's oral request the prayer for certiorari quashing Original Suit No. 1146 of 2023 was permitted to be deleted. On the remaining prayers for laying wires, commencing supply, and compensation under clause 7.7.2 of the Electricity Supply Code, 2005, the electricity respondents were granted four weeks for a counter-affidavit and the petitioner two weeks thereafter for a rejoinder. The writ was listed for 15 October 2024. No Supply Code clause was construed.

FACTUAL SUMMARY

Vishwanath petitioned the Lucknow Bench because poles stood erected and his connection application was approved, yet supply had not started. He sought a mandamus to opposite parties nos. 3 and 4 to lay wires and commence supply, and compensation from opposite parties nos. 1 to 4 under clause 7.7.2 and other clauses of Chapter 7 of the Electricity Supply Code, 2005. He also asked that Original Suit No. 1146 of 2023, pending before the Civil Judge (Senior Division), Sultanpur, be quashed. The Standing Counsel objected to maintainability.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

deletion of one prayer and time for affidavits

HOLDING

The Court permitted the petitioner to delete, during the day, the prayer for certiorari quashing Original Suit No. 1146 of 2023. On the prayers to lay wires and start supply and for compensation under clause 7.7.2 of the Electricity Supply Code, 2005, it granted opposite parties four weeks to file a counter-affidavit and the petitioner two weeks thereafter for a rejoinder, and listed the writ on 15 October 2024. ¶ 1-2

PRINCIPLE TAGS

procedural-listing-no-construction The Bench only permitted deletion of the civil-suit prayer, fixed time for counter-affidavit and rejoinder on the supply and compensation prayers, and adjourned the writ. It did not construe clause 7.7.2 or any other provision of the Supply Code. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER OPPOSITE PARTIES NOS. 3 AND 4 MUST LAY WIRES ON THE ERECTED POLES AND COMMENCE SUPPLY

Left for hearing after counter-affidavit and rejoinder. ¶ 1-2

NOT DECIDED — COMPENSATION UNDER CLAUSE 7.7.2 AND OTHER CLAUSES OF CHAPTER 7 OF THE ELECTRICITY SUPPLY CODE, 2005

Pleaded in the writ and not examined. ¶ 1-2

NOT DECIDED — MAINTAINABILITY OF THE WRIT

Objection raised by the Standing Counsel and not decided. ¶ 1-2

